

		If Plaintiff prevails on her appeal, this motion would be rendered moot. Thus, this proceeding is inherently inconsistent with a possible outcome on appeal. Viewed another way, if the court were to grant this motion, that would vacate or set aside the court's order dated February 20, 2026. In turn, that would undermine the judgment that Plaintiff seeks to challenge on appeal. Accordingly, this is a proceeding that affects the effectiveness of the appeal. It is not a proceeding that could or would have occurred regardless of the outcome of the appeal. As a result, this proceeding is stayed by Section 916 and the court lacks jurisdiction to consider the motion pending the appeal. For this reason, the court will take the motion off calendar. Defendants shall give notice of this ruling.
2	I.B.I Volcano Investments LLC vs. Nelson 30-2025-01513043	<u>Motion for Leave to Amend</u> Plaintiff's I.B.I. Volcano Investments LLC's Motion for Leave to File an Amended Complaint is GRANTED. Plaintiff I.B.I. Volcano Investments LLC shall file and serve Plaintiff I.B.I. Volcano Investments LLC's, First Amended Complaint, attached as Exhibit A to the Declaration of Adam A. Vukovic in Support of Plaintiff's I.B.I. Volcano Investments LLC's Motion for Leave to File an Amended Complaint, within 30 days of this ruling. <u>Pending Motion</u> Plaintiff I.B.I Volcano Investments LLC moves for leave to file Plaintiff I.B.I. Volcano Investments LLC's, First Amended Complaint. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a

		mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes “delay in trial,
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		loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; see also <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend”], citations and quotations omitted.) It is also an abuse of discretion to refuse amendment where that “results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense.” (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971) 18 Cal.App.3d 240, 251-256.) Thus, “[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.” (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Pursuant California Rules of Court rule 3.1324, a motion to amend a pleading shall: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) In addition, California Rules of Court rule 3.132 requires that a separate declaration accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) In this case, Plaintiff seeks leave to amend the complaint to assert a new cause of action for Fraudulent Transfer –
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		Constructive Fraud under Civil Code section 3439.05 against Defendants Brian Nelson and Stacey Nelson. The amendments assert a new theory of liability based upon the same facts and circumstances alleged in the original complaint. Further, no party has pointed to any way in which Defendants were misled or prejudiced. In fact, Defendants have not filed an opposition or otherwise responded to the motion. Thus, they have waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Finally, Plaintiff has complied with the requirements of California Rules of Court, rule 3.1324. Therefore, the court will grant the motion. Plaintiff shall give notice of this ruling.
3	Patel vs. Quality Escrow, Inc. 30-2026-01568098	<u>Motion to Intervene</u> Proposed Intervenor Marsha Starr's; Ronald R. Jimenez's; Michael A. Kucharski's; The Entrust Group, Inc.'s; Thomas A. Summer's; and Richard J. Walter's and Dawn-Michelle Walter's Motion to Intervene GRANTED on the condition that, within 7 days of this ruling, Proposed Intervenor's: 1) File and serve a properly signed Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene, or 2) Provide evidence that the original Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene was signed and maintained in compliance with Rule 2.257(b). Provided Proposed Intervenor's meet that condition, they shall file and serve the Verified Proposed Complaint in Intervention, attached as Exhibit G to the Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene, within 30 days of this ruling.